

Tentative Rulings

August 19, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing either in person, via CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

11. *Green v. Wang, et al*, Case No. CIVSB2535308

Plaintiff's MTC Responses from O2 Performance to Form Interrogatories, Set One
Plaintiff's MTC Responses from O2 Performance to Special Interrogatories, Set One
Plaintiff's MTC Responses from O2 Performance to Requests for Production, Set One
Plaintiff's Motion to Deem as Admitted Requests for Admissions, Set One
8/19/26, 9:00 a.m., Dept. S-17

As to the Motions to Compel Responses: The Court would **GRANT** the three unopposed motions. Responses will be due within thirty (30) days.

As to the Motion to Deem Requests for Admissions as Admitted: The Court would first inquire as to whether verified responses have been provided prior to hearing. If so, the motion would be deemed **MOOT**. If not, then the Court would **GRANT**.

As to Sanctions: The Court would also order Defendant O2 Performance to pay sanctions in the amount of \$2,560, in total, within thirty (30) days of this ruling. The Court notes that the motions were unopposed and that they were largely duplicative and form-driven.

Analysis

Plaintiff asserts that she served her first set of discovery on Defendant O2 Performance on January 20, 2026. (E.g., Mazza Decl., ¶4 & Exh. 1 [FROG1, SROG1, RFA1]; Jimenez Decl., ¶3 & Exh. 1 [RFP1].) This set of discovery included the at-issue Form Interrogatories, Set One (FROG1); Special Interrogatories, Set One (SROG1); Requests for Production, Set One (RFP1); and Requests for Admissions, Set One (RFA1). Responses were due by February 24, 2026. (E.g., Mazza Decl., ¶4; Jimenez Decl., ¶3.) Although no meet-and-confer was required, Plaintiff's counsel emailed Defendant's counsel on February 9, 2026. (E.g., Mazza Decl., ¶5 & Exh. 2; Jimenez Decl., ¶4 & Exh. 2.) After an extensions were variously granted, Plaintiff received unverified responses on April 7, 2026. (Mazza Decl., ¶¶6-9; Jimenez Decl., ¶¶5-7.) After an extension of time to allow for verifications was exceeded without the provision of verifications, these motions followed. (Mazza Decl., ¶¶9-11; Jimenez Decl., ¶¶11-13.) Notably, Defendant filed non-oppositions to the Motions to Compel Responses. (See Non-Opps., filed Aug. 6, 2026.) Troubling, nothing was filed in relation to the Motion to Deem Requests for Admission as Admitted.

As to the Motions to Compel, A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Thus, the Court would grant those motions.

As to the Motion to Deem Requests for Admission as Admitted, "[t]he law governing the consequences for failing to respond to requests for admission may be the most unforgiving in civil procedure." (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 394, disapproved on other grounds *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983.) "There is no relief under section 473." (*Ibid.*) "The defaulting party is limited to the remedies available in (CCP § 2033.280)." (*Ibid.*) "The propounding party need give no warning (at least according to one well-respected authority) – it simply files a motion to deem the matters covered by the requests admitted." (*Demyer, supra*, 36 Cal.App.4th at p. 395.) "The nonresponding party then has until the 'hearing on the motion' to serve responses to the admissions request." (*Ibid.*) "If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion." (*Ibid.*) "But woe betide the party who fails to serve responses before

the hearing.” (*ibid.*) “In that instance the court has no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party.” (*Demyer, supra*, 36 Cal.App.4th at pp. 395-396.)

The Court will inquire as to whether verifications have been provided. Barring that, the Court would grant.

TENTATIVE